

**Present**  
**Mr. Justice Sheikh Abdul Awal**  
**Criminal Appeal No. 4932 of 2020**

Masum Chowdhury (Apu)  
.....Convict-appellant.

-Versus-  
The State and another.  
.....Respondents.

Mr. Majedul Hasan Miajee, Advocate  
.....For the appellant.

Mr. Md. Sarwar Alam, Advocate.  
.... For the Respondent No.2.

Ms. Shahida Khatoon, D.A.G with  
Ms. Sabina Perven, A.A.G with  
Ms. Kohenoor Akter, A.A.G  
.... For the Sate.

**Heard on 04.01.2024 and**  
**Judgment on 11.01.2024**

**Sheikh Abdul Awal, J:**

This Appeal at the instance of convict appellant, Masum Chowdhury (Apu) is directed against the judgment and order of conviction and sentence dated 14.02.2018 passed by the learned Additional Sessions Judge, 1<sup>st</sup> Court, Narayangonj in Sessions Case No. 179 of 2016 arising out of C.R. Case No. 46 of 2016 convicting the appellant under section 138 of the Negotiable Instrument Act, 1881 and sentencing him

thereunder to suffer imprisonment for a period of 6 (six) months and to pay a fine of Tk. 50,00,000/- (fifty Lakhs).

Mr. Majedul Hasan Miajee, the learned Advocate appearing for the convict-appellant and Mr. Sarwar Alam, the learned Advocate appearing for the complainant-Respondent No.2 after placing an aposhnama dated 09.01.2024 jointly submitted that during the pendency of the Rule, the parties have amicably settled the matter in which the appellant has paid entire cheque's amount to the complainant-Respondent No.2 and as per apashnama the complainant-Respondent No.2 should have withdrawn the money amounting to Taka 12,50,000/- (Twelve lakhs fifty thousand) deposited by the convict appellant at the time of preferring this appeal.

The learned Advocates for both the parties further jointly submitted that since both the parties have already made compromise over the dispute, the appeal may kindly be allowed upon recording compromise, offence under Section 138 of the Act may be compounded and the conviction of the appellant is liable to be set-aside.

Perused the aposhnama vide regd. No. 481 dated 09.01.2024 made under the joint signatures of the parties

and heard the learned Advocates and the Deputy Attorney General.

Having regard to the submission made by the learned Advocates for both the parties, I am of the view that there is no reason not to accept the compromise entered into between the parties. The Negotiable Instruments Act, 1881 is silent about compromise of offences under the Act, but the Act does not make any provision therein prohibiting such compromise. Since N.I. Act proceeding arises out of monetary transaction and the proceeding is a quasi civil and quasi criminal in nature, maximum sentence under the law is one year, I am of the view that the dispute between the parties under Negotiable Instruments Act proceeding has been resolved out of Court by the parties on compromise and the same should be allowed by the Court at any stage of the proceeding even at the appellate or revisional stage.

In the Supreme Court of India, it has been consistently decided that the offence under Section 138 of the Negotiable Instruments Act being compoundable.

For the reasons stated above, I allow the prayer made on behalf of the contesting parties with the direction that compromise done by the parties is hereby accepted and dispose of the appeal on the basis of the said compromise.

Accordingly, the appeal is allowed by holding that since the matter has been compromised between the parties and the amount in terms of the said compromise has been paid, the appellant is entitled to acquittal.

The order of conviction and sentence passed by the trial Court below is set-aside and the appellant is acquitted of the charge under Section 138 of the Act. Convict appellant, Masum Chowdhury (Apu) is discharged from his bail bond and the trial Court is directed to allow the complainant-Respondent No.2 to withdraw half of the cheque's amount deposited in the Trial Court by the convict-appellant for the purpose of preferring this Criminal Appeal.

The appeal stands disposed of in the above terms.

Send down the lower Court records at once.